

SENATE BILL 25

By Pody

AN ACT to amend Tennessee Code Annotated, Title 33;
Title 36; Title 37; Title 49; Title 63 and Title 68,
relative to healthcare treatment of minors.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 33-8-202, is amended by deleting subdivision (c)(1) and substituting:

(1) A child's parent, legal guardian, or legal custodian may access all mental health treatment, medical, rehabilitation, and prescription records resulting from treatment provided to an unemancipated minor pursuant to this section;

SECTION 2. Tennessee Code Annotated, Section 33-8-202(c)(2), is amended by deleting "prescription records" wherever it appears and substituting "mental health treatment, medical, rehabilitation, and prescription records".

SECTION 3. Tennessee Code Annotated, Section 68-11-304, is amended by deleting subsection (i) and substituting:

(i) If an unemancipated minor receives medical treatment, then the minor's parent, legal guardian, legal custodian, or other person with medical decision-making authority for the unemancipated minor may access, and a healthcare provider or healthcare facility shall provide access to, all medical treatment and prescription records resulting from medical treatment of the minor, even if the treatment was provided to the unemancipated minor without parental consent, including, but not limited to, treatment provided pursuant to § 68-10-104(c), § 68-34-107, § 63-6-220, § 63-6-222, or § 63-6-223.

SECTION 4. Tennessee Code Annotated, Section 68-11-304(j), is amended by deleting "prescription records" wherever it appears and substituting "medical treatment and prescription records".

SECTION 5. Tennessee Code Annotated, Section 36-8-103, is amended by deleting subdivision (c)(4) and substituting:

(4) To access and review all health and medical records of the child, including health and medical records related to treatments available to unemancipated minors without parental consent;

SECTION 6. Tennessee Code Annotated, Section 63-1-176, is amended by deleting subdivision (c)(6) and substituting:

(6) An employee of a local education agency:

(A) Acts to control bleeding using a bleeding control kit pursuant to § 49-2-137; or

(B) Provides bandages, gauze, or ice packs for the treatment of minor cuts, scrapes, bumps, and bruises.

SECTION 7. This act takes effect upon becoming a law, the public welfare requiring it.